

COMMERCIAL LEASE AGREEMENT

This Commercial Lease Agreement ("Lease") is entered into as of March 1, 2026 ("Commencement Date"), by and between:

LANDLORD: Metropolitan Properties Group LLC

Address: 1800 Century Park East, Los Angeles, CA 90067

Jurisdiction: Delaware

Contact: Jennifer Thompson, Senior Asset Manager

Email: jennifer.thompson@metroprop.com

Party Value: \$750,000,000 (total portfolio value)

AND

TENANT: QuantumTech Data Centers Inc.

Address: 3000 Technology Drive, Austin, TX 78741

Jurisdiction: Texas

Contact: Robert Kim, Director of Real Estate

Email: robert.kim@quantumtech.com

Party Value: \$420,000,000 (estimated annual revenue)

RECITALS

WHEREAS, Landlord is the owner of certain commercial real property located at 5500 Industrial Boulevard, Denver, Colorado 80239;

WHEREAS, Tenant desires to lease the Premises for the purpose of operating a data center facility;

WHEREAS, Landlord desires to lease the Premises to Tenant upon the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. PREMISES AND COMMON AREAS

1.1 Leased Premises: Landlord hereby leases to Tenant, and Tenant hereby leases from Landlord, the following described premises ("Premises"):

- Building Address: 5500 Industrial Boulevard, Denver, CO 80239
- Total Rentable Square Footage: 125,000 square feet
- Description: Single-story industrial building with heavy-duty electrical infrastructure, redundant cooling systems, and raised flooring suitable for data center operations
- Parking: 200 designated parking spaces
- Loading Docks: 4 dock-high loading bays with 14-foot clearance

1.2 Common Areas: Tenant shall have non-exclusive access to common areas, including:

- Driveways, roadways, and parking areas
- Loading and unloading areas
- Landscaped areas
- Building lobby and corridors (if applicable)
- Exterior lighting and signage areas

1.3 Property Description: The Premises are situated on an approximately 8.5-acre parcel legally described as:

Lot 7, Block 3, Denver Industrial Park Phase II, County of Denver, State of Colorado, as recorded in Plat Book 142, Page 88

1.4 Permitted Use: The Premises shall be used exclusively for:

- Data center operations and colocation services
- Office space incidental to data center operations
- Equipment storage and maintenance areas
- Emergency generator and backup power facilities
- Any other lawful purposes approved in writing by Landlord

1.5 Prohibited Uses: Tenant shall not use the Premises for:

- Residential purposes
- Hazardous waste storage or disposal (except as permitted under Section 8)
- Manufacturing or heavy industrial operations
- Any illegal activities
- Any use that would increase insurance premiums or violate zoning regulations

2. LEASE TERM

2.1 Initial Term: The initial term of this Lease shall be fifteen (15) years, commencing on March 1, 2026, and ending on February 28, 2041 ("Initial Term"), unless sooner terminated in accordance with this Lease.

2.2 Renewal Options: Tenant shall have three (3) options to renew this Lease for additional five (5) year periods ("Renewal Terms") upon the following conditions:

- Tenant must provide written notice of intent to renew at least twelve (12) months prior to expiration of the then-current term
- Tenant must not be in default under any provision of this Lease
- All terms shall remain the same except Base Rent, which shall be adjusted to Fair Market Rent as determined under Section 3.4

2.3 Early Access: Landlord shall provide Tenant with early access to the Premises for a period of sixty (60) days prior to the Commencement Date for the purpose of installing equipment, telecommunications infrastructure, and making tenant improvements. During this early access period, Tenant shall pay operating expenses and utilities but no Base Rent.

3. RENT

3.1 Base Rent: Tenant shall pay to Landlord annual base rent ("Base Rent") as follows:

Years 1-3 (March 1, 2026 - February 28, 2029):

\$2,187,500 per year (\$17.50 per square foot)

Monthly installments: \$182,291.67

Years 4-6 (March 1, 2029 - February 28, 2032):

\$2,375,000 per year (\$19.00 per square foot)

Monthly installments: \$197,916.67

Years 7-9 (March 1, 2032 - February 28, 2035):

\$2,562,500 per year (\$20.50 per square foot)

Monthly installments: \$213,541.67

Years 10-12 (March 1, 2035 - February 28, 2038):

\$2,750,000 per year (\$22.00 per square foot)

Monthly installments: \$229,166.67

Years 13-15 (March 1, 2038 - February 28, 2041):

\$2,937,500 per year (\$23.50 per square foot)

Monthly installments: \$244,791.67

3.2 Payment Terms:

- Base Rent shall be paid monthly in advance on the first day of each calendar month
- Payments shall be made by ACH transfer to Landlord's designated account
- First month's rent and last month's rent shall be paid upon execution of this Lease
- No deduction, offset, or abatement shall be made from Base Rent except as expressly provided in this Lease

3.3 Late Charges: If any rental payment is not received within five (5) business days of the due date:

- A late charge of 5% of the overdue amount shall be immediately due
- Interest shall accrue at the rate of 10% per annum or the maximum legal rate, whichever is less
- If payment is late more than twice in any twelve-month period, Landlord may require all future payments be made by wire transfer with same-day value

3.4 Fair Market Rent Determination: For any Renewal Term, Fair Market Rent shall be determined as follows:

- Landlord shall provide Tenant with proposed Fair Market Rent within thirty (30) days of receiving Tenant's renewal notice
- If Tenant disagrees, the parties shall negotiate in good faith for thirty (30) days
- If no agreement is reached, each party shall appoint a qualified commercial real estate appraiser (MAI designation)
- The two appraisers shall select a third appraiser
- The three appraisers shall determine Fair Market Rent by averaging the two closest valuations
- Each party shall bear the cost of its own appraiser; the third appraiser's cost shall be shared equally

4. ADDITIONAL RENT AND OPERATING EXPENSES

4.1 Operating Expenses: In addition to Base Rent, Tenant shall pay its Proportionate Share of Operating Expenses. "Operating Expenses" include:

- Real property taxes and assessments
- Property and liability insurance premiums
- Common area maintenance (CAM) including landscaping, snow removal, parking lot maintenance
- Property management fees (not to exceed 3% of gross rents)
- Exterior building maintenance and repairs
- Common area utilities
- Security services
- Administrative costs related to property operation

4.2 Exclusions from Operating Expenses: Operating Expenses shall not include:

- Costs of capital improvements (except as amortized under Section 4.3)
- Leasing commissions and tenant improvement costs for other tenants
- Costs of repairs covered by insurance or attributable to Landlord's negligence
- Principal and interest on any mortgages
- Landlord's income taxes
- Costs of services not provided to Tenant

4.3 Capital Improvements: Costs of capital improvements that reduce Operating Expenses or are required by law may be included in Operating Expenses if amortized over the useful life of the improvement at an interest rate not exceeding 8% per annum.

4.4 Proportionate Share: Tenant's Proportionate Share shall be 100% (as Tenant is the sole tenant of the building). If Landlord subdivides the building for additional tenants, Tenant's Proportionate Share shall be adjusted to reflect the ratio of Tenant's square footage to total rentable square footage.

4.5 Estimated Payments: Landlord shall provide Tenant with an annual estimate of Operating Expenses. Tenant shall pay one-twelfth (1/12) of the estimated amount monthly with Base Rent.

4.6 Reconciliation: Within ninety (90) days after the end of each calendar year, Landlord shall provide a detailed statement of actual Operating Expenses. Any overpayment shall be credited against future rent; any underpayment shall be due within thirty (30) days.

4.7 Audit Rights: Tenant may, upon thirty (30) days' notice and during normal business hours, audit Landlord's books and records related to Operating Expenses for the prior two (2) years. If the audit reveals an overcharge exceeding 5%, Landlord shall reimburse Tenant for the reasonable cost of the audit.

5. UTILITIES AND SERVICES

5.1 Tenant's Utilities: Tenant shall be responsible for and shall pay directly to the utility providers all costs for:

- Electricity (Tenant acknowledges high electrical consumption for data center operations)
- Natural gas
- Water and sewer
- Telecommunications and internet services
- Trash removal and recycling services

5.2 Electrical Capacity: Landlord represents that the Premises has electrical capacity of 10 megawatts (MW) with redundant utility feeds. Tenant shall be responsible for obtaining any necessary upgrades beyond this capacity at Tenant's sole expense, subject to Landlord's approval.

5.3 HVAC: The Premises includes HVAC systems capable of maintaining temperatures between 64-80°F with appropriate humidity control for data center operations. Tenant shall maintain all HVAC systems serving the Premises at Tenant's expense.

5.4 24/7 Access: Tenant and its employees, contractors, and clients shall have access to the Premises 24 hours per day, 7 days per week, 365 days per year. Landlord shall provide Tenant with keys, access cards, and security codes as necessary.

5.5 Emergency Services: Landlord shall provide:

- Fire alarm monitoring and emergency response
- Emergency lighting in common areas
- Snow and ice removal from parking areas and walkways within 12 hours of cessation of snowfall

6. SECURITY DEPOSIT

6.1 Amount: Upon execution of this Lease, Tenant shall deposit with Landlord the sum of \$365,833.34 (equal to two months' Base Rent at the initial rate) as a security deposit ("Security Deposit").

6.2 Purpose: The Security Deposit shall secure Tenant's faithful performance of all obligations under this Lease, including payment of rent, repair of damages, and restoration of the Premises.

6.3 Application: Landlord may apply the Security Deposit to cure any default by Tenant. If any portion is applied, Tenant shall restore the Security Deposit to its full amount within ten (10) days of written demand.

6.4 Interest: The Security Deposit shall not bear interest except as required by applicable law.

6.5 Return: Within sixty (60) days after the expiration or termination of this Lease and Tenant's surrender of the Premises in the required condition, Landlord shall return the Security Deposit, less any amounts properly applied to cure defaults or repair damages beyond normal wear and tear, together with an itemized statement of any deductions.

6.6 Reduction: If Tenant is not in default at any time during the Initial Term, the Security Deposit shall be reduced by 50% effective on the tenth (10th) anniversary of the Commencement Date.

7. TENANT IMPROVEMENTS AND ALTERATIONS

7.1 Initial Tenant Improvements: Prior to the Commencement Date, Tenant shall construct tenant improvements in accordance with plans and specifications approved by Landlord ("Initial Improvements"), including:

- Installation of data center infrastructure (server racks, cooling systems, cable management)
- Upgraded electrical distribution systems
- Enhanced fire suppression systems (VESDA or equivalent)
- Security systems (biometric access, CCTV, intrusion detection)
- Office build-out for administrative areas

7.2 Tenant Improvement Allowance: Landlord shall provide a one-time tenant improvement allowance of \$3,125,000 (\$25 per square foot) to be applied toward the cost of Initial Improvements.

- Tenant shall submit draw requests with supporting documentation
- Landlord shall reimburse approved costs within thirty (30) days
- Any unused portion of the allowance shall be forfeited
- Allowance may only be used for hard costs, not FF&E or equipment

7.3 Approval Process for Alterations: Tenant shall not make any alterations, additions, or improvements ("Alterations") to the Premises without Landlord's prior written consent, which shall not be unreasonably withheld for non-structural Alterations costing less than \$100,000.

7.4 Structural Alterations: Any Alterations affecting the structural integrity, exterior appearance, or building systems require Landlord's express written approval and must be performed by contractors approved by Landlord.

7.5 Construction Requirements: All Alterations shall:

- Comply with all applicable building codes and regulations
- Be performed by licensed contractors with appropriate insurance
- Be performed in a good and workmanlike manner
- Not interfere with other tenants (if any) or building operations
- Be evidenced by appropriate permits and certificates of occupancy

7.6 Mechanic's Liens: Tenant shall keep the Premises free from any mechanic's liens arising from Alterations. If any lien is filed, Tenant shall bond over or discharge the lien within twenty (20) days or Landlord may do so and charge Tenant for all costs plus 15% administrative fee.

7.7 Ownership of Improvements: All Alterations shall become the property of Landlord upon installation, except:

- Movable equipment and furnishings not permanently affixed to the Premises
- Trade fixtures and specialized data center equipment that can be removed without material damage
- Items Landlord requires Tenant to remove at lease termination (specified in writing at time of approval)

8. MAINTENANCE AND REPAIRS

8.1 Tenant's Maintenance Obligations: Tenant shall maintain, at Tenant's sole expense:

- Interior of the Premises, including walls, floors, ceilings, doors, and windows
- All plumbing, electrical, and HVAC systems serving exclusively the Premises
- All tenant improvements and alterations
- All data center equipment and infrastructure
- Pest control
- Interior painting and finishes

- Door locks and security systems
- Regular janitorial and cleaning services

8.2 Landlord's Maintenance Obligations: Landlord shall maintain and repair, at Landlord's expense (subject to reimbursement through Operating Expenses):

- Structural elements of the building (foundation, exterior walls, roof)
- Building systems serving multiple tenants or common areas
- Parking areas, driveways, and walkways
- Landscaping and irrigation systems
- Exterior lighting
- Common area HVAC, plumbing, and electrical

8.3 Standard of Maintenance: All maintenance and repairs shall be performed:

- In a good and workmanlike manner
- In compliance with all applicable laws and regulations
- With materials of equal or better quality
- Promptly upon discovery of need for repair

8.4 Emergency Repairs: In the event of an emergency requiring immediate repair to prevent damage to property or injury to persons, Tenant may make necessary repairs and, if such repairs are Landlord's responsibility, seek reimbursement from Landlord. Tenant shall notify Landlord of emergency repairs as soon as practicable.

8.5 Landlord's Right to Inspect: Landlord and its agents shall have the right to enter the Premises upon twenty-four (24) hours' advance notice (except in emergencies) to inspect, make repairs, show the Premises to prospective purchasers or lenders, or for any other lawful purpose. Such entry shall not unreasonably interfere with Tenant's business operations.

9. INSURANCE

9.1 Tenant's Insurance: Tenant shall maintain, at its expense, the following insurance:

a) Commercial General Liability Insurance:

- Minimum limits: \$5,000,000 per occurrence, \$10,000,000 aggregate
- Coverage for bodily injury, property damage, and personal injury
- Landlord and Landlord's property manager named as additional insureds

b) Property Insurance:

- All-risk coverage on replacement cost basis
- Coverage for all tenant improvements, alterations, fixtures, and personal property
- Minimum coverage equal to full replacement value

c) Business Interruption Insurance:

- Sufficient to cover 18 months of rent and operating expenses
- Coverage for loss of income due to covered perils

d) Workers' Compensation Insurance:

- Statutory limits as required by Colorado law
- Employers' liability: minimum \$1,000,000

e) Cyber Liability and Data Breach Insurance:

- Minimum limits: \$10,000,000 per occurrence
- Coverage for data breach, privacy liability, network security liability

f) Umbrella/Excess Liability:

- Minimum limits: \$10,000,000
- Following form over primary liability policies

9.2 Landlord's Insurance: Landlord shall maintain:

- Property insurance on the building and common areas
- Commercial general liability insurance
- Loss of rents insurance
- Such other insurance as Landlord deems appropriate or as required by Landlord's lender

9.3 Insurance Requirements:

- All policies shall be issued by insurers rated A-VIII or better by A.M. Best
- All policies shall provide that they may not be cancelled or materially modified without thirty (30) days' prior written notice to Landlord
- Tenant shall provide certificates of insurance prior to taking occupancy and within ten (10) days of each policy renewal
- Tenant shall provide complete copies of policies upon Landlord's request

9.4 Waiver of Subrogation: Each party waives all rights of recovery against the other party for any loss or damage covered by property insurance required under this Lease, to the extent covered by insurance proceeds. Each party shall obtain from its insurer a waiver of subrogation in favor of the other party.

9.5 Increased Premiums: If Tenant's use of the Premises causes an increase in Landlord's insurance premiums, Tenant shall reimburse Landlord for such increase within thirty (30) days of invoice.

10. CASUALTY DAMAGE

10.1 Partial Damage - Premises Usable: If the Premises are damaged by fire or other casualty but remain usable (less than 25% damaged), Landlord shall repair the damage at Landlord's expense within 180 days. Base Rent shall not abate.

10.2 Partial Damage - Premises Unusable: If the Premises are damaged by fire or other casualty and are rendered unusable (25% to 50% damaged):

- Landlord shall notify Tenant within sixty (60) days whether Landlord elects to repair
- If Landlord elects to repair, repairs shall be completed within 270 days
- Base Rent shall abate proportionately to the unusable portion during restoration
- If repair is not completed within 270 days (excluding force majeure delays), Tenant may terminate this Lease

10.3 Substantial Damage: If more than 50% of the Premises are damaged or destroyed:

- Either party may terminate this Lease by written notice within sixty (60) days of the casualty
- If neither party terminates, Landlord shall restore the Premises within 365 days
- Base Rent shall abate entirely during restoration
- If restoration is not completed within 365 days (excluding force majeure delays), either party may terminate

10.4 Damage Near End of Term: If damage occurs during the last two (2) years of the Lease term and estimated restoration time exceeds six (6) months, either party may terminate this Lease.

10.5 Tenant's Property: Landlord shall have no obligation to repair or replace Tenant's personal property, equipment, tenant improvements (beyond base building improvements), or furnishings. Tenant's insurance shall cover such items.

10.6 Waiver: Tenant waives any statutory rights to terminate the Lease due to casualty damage except as expressly provided in this Section 10.

11. CONDEMNATION

11.1 Total Taking: If the entire Premises are taken by eminent domain or condemnation ("Taking"), this Lease shall automatically terminate as of the date of Taking, and rent shall be apportioned as of that date.

11.2 Partial Taking - Premises Unusable: If a Taking renders 30% or more of the Premises unusable for Tenant's data center operations:

- Either party may terminate this Lease by written notice within sixty (60) days of the Taking
- If terminated, rent shall be apportioned as of the date of Taking
- If not terminated, Base Rent shall be reduced proportionately

11.3 Partial Taking - Premises Usable: If a Taking affects less than 30% of the Premises:

- This Lease shall continue in full force
- Base Rent shall be reduced proportionately to reflect the reduced square footage
- Landlord shall restore the remaining Premises to a complete architectural unit

11.4 Temporary Taking: If there is a temporary Taking of the Premises for 180 days or less, this Lease shall remain in effect, Tenant shall continue paying rent, and Tenant shall be entitled to the condemnation award.

11.5 Award: Any condemnation award shall belong entirely to Landlord. Tenant waives any claim to the award, except:

- Tenant may file a separate claim for moving expenses and business interruption losses if such claim does not reduce Landlord's award
- Tenant may claim compensation for Tenant's personal property and removable trade fixtures

11.6 Taking of Parking or Access: If a Taking of parking areas or access roads materially impairs Tenant's use of the Premises and Landlord cannot provide substitute facilities within 90 days, Tenant may terminate this Lease.

12. ENVIRONMENTAL MATTERS

12.1 Hazardous Materials Definition: "Hazardous Materials" means any substance, material, or waste that is regulated by any federal, state, or local environmental law, including petroleum products, asbestos, PCBs, radioactive materials, and any substance listed as hazardous under CERCLA, RCRA, or state equivalents.

12.2 Tenant's Covenants: Tenant shall not:

- Use, generate, manufacture, store, or dispose of Hazardous Materials on the Premises except for:
 - * Small quantities of cleaning supplies, office supplies, and maintenance materials used in ordinary course of business
 - * Diesel fuel for backup generators
 - * Batteries for UPS systems
 - * Refrigerants in HVAC systems
- All permitted Hazardous Materials shall be used, stored, and disposed of in strict compliance with all environmental laws
- Tenant shall obtain all required environmental permits and provide copies to Landlord

12.3 Tenant's Environmental Indemnity: Tenant shall indemnify, defend, and hold Landlord harmless from any claims, costs, liabilities, or damages (including attorneys' fees, cleanup costs, and regulatory penalties) arising from:

- Tenant's use, storage, or disposal of Hazardous Materials
- Any release of Hazardous Materials caused by Tenant during the Lease term
- Tenant's violation of environmental laws

This indemnity shall survive termination of this Lease.

12.4 Landlord's Representations: Landlord represents that, to its actual knowledge without duty of inquiry:

- The Premises are not in violation of any environmental laws

- Landlord has received no notice of any environmental claims or investigations
- Landlord has no knowledge of any Hazardous Materials contamination on the Premises

12.5 Pre-Existing Contamination: Landlord shall be responsible for and shall remediate any pre-existing contamination discovered on the Premises that existed prior to Tenant's occupancy, provided Tenant gives prompt notice upon discovery.

12.6 Environmental Assessments: Landlord may, at Landlord's expense, conduct periodic environmental assessments of the Premises upon reasonable notice. If any assessment reveals contamination caused by Tenant, Tenant shall reimburse Landlord for the cost of the assessment and shall promptly remediate the contamination.

12.7 Emergency Generator Compliance: Tenant's operation of emergency generators shall comply with all air quality regulations, including:

- Obtaining all necessary air permits
- Conducting required emissions testing
- Maintaining generator operation logs
- Using ultra-low sulfur diesel fuel

13. DEFAULT AND REMEDIES

13.1 Events of Default: The occurrence of any of the following shall constitute a default by Tenant:

a) Payment Default: Failure to pay Base Rent, Additional Rent, or any other sum within five (5) business days of the due date (provided that Tenant shall be entitled to one notice of non-payment per twelve-month period before such failure constitutes a default)

b) Covenant Default: Failure to perform any non-monetary covenant or obligation, which failure continues for thirty (30) days after written notice from Landlord (or such longer period as reasonably necessary if the default cannot reasonably be cured within 30 days,

provided Tenant commences cure within the 30-day period and diligently prosecutes cure to completion)

c) Abandonment: Abandonment of the Premises for more than thirty (30) consecutive days

d) Insolvency: Tenant becomes insolvent, makes an assignment for benefit of creditors, files for bankruptcy, or has an involuntary bankruptcy petition filed against it that is not dismissed within ninety (90) days

e) Misrepresentation: Any material misrepresentation in Tenant's financial statements or other information provided to Landlord

f) Repeated Defaults: More than three (3) defaults (whether cured or not) in any twelve-month period

13.2 Landlord's Remedies: Upon the occurrence of an Event of Default, Landlord may, at its option:

a) Terminate this Lease by written notice, in which event Tenant shall immediately surrender the Premises. If Tenant fails to surrender, Landlord may re-enter and take possession without liability for trespass or damages.

b) Terminate Tenant's right to possession without terminating the Lease, re-enter and relet the Premises on behalf of Tenant, and collect:

- All unpaid rent through the date of termination
- The present value of all rent for the remainder of the term, less the fair rental value of the Premises for the same period
- All costs of reletting (brokerage fees, tenant improvements, legal fees, etc.)
- All costs of collecting amounts due

c) Continue the Lease in effect and enforce all rights and remedies, including the right to collect rent as it becomes due

d) Exercise any other remedy available at law or in equity

13.3 Damages: In addition to any other remedies, Tenant shall be liable for:

- All rent and other sums due under this Lease
- Costs of recovering possession of the Premises
- Costs of removing and storing Tenant's property
- Attorneys' fees and court costs
- Brokerage commissions and advertising expenses for reletting
- Costs of tenant improvements or alterations for new tenants
- The difference between rent due under this Lease and rent received from reletting

13.4 Landlord Default: Landlord shall be in default if Landlord fails to perform any obligation under this Lease and such failure continues for thirty (30) days after written notice from Tenant (or such longer period as reasonably necessary if the default cannot reasonably be cured within 30 days, provided Landlord commences cure within the 30-day period).

13.5 Tenant's Remedies: If Landlord is in default, Tenant may:

- Perform Landlord's obligation and deduct reasonable costs from next rent payment(s), provided Tenant first provides Landlord with an additional ten (10) days' notice and opportunity to cure
- Seek specific performance or injunctive relief
- If Landlord's default is material and continues for sixty (60) days after notice, terminate this Lease
- Pursue any other remedy available at law or in equity

13.6 Waiver: Landlord's acceptance of rent with knowledge of a default shall not waive Landlord's right to enforce the default. No waiver of any default shall constitute a waiver of any subsequent default.

13.7 Right to Cure Tenant's Default: If Tenant fails to perform any obligation, Landlord may (but is not obligated to) perform such obligation on Tenant's behalf after providing notice and opportunity to cure. Tenant shall reimburse Landlord for all costs incurred plus a 15% administrative fee within ten (10) days of invoice.

14. ASSIGNMENT AND SUBLETTING

14.1 Prohibition: Tenant shall not assign this Lease or sublet all or any portion of the Premises without Landlord's prior written consent, which consent shall not be unreasonably withheld, conditioned, or delayed.

14.2 Request for Consent: Any request for consent to assign or sublet shall include:

- Identity and address of proposed assignee or subtenant
- Financial statements and credit references for proposed assignee or subtenant
- Description of proposed assignee's/subtenant's business and proposed use
- Copy of proposed assignment or sublease agreement
- Processing fee of \$5,000 to cover Landlord's review costs

14.3 Standards for Consent: Landlord may reasonably withhold consent if:

- The proposed use is not permitted under this Lease or applicable law
- The proposed assignee/subtenant is not financially responsible (net worth less than Tenant's)
- The proposed assignee/subtenant is an existing tenant in Landlord's portfolio or has negotiated with Landlord in the prior 12 months
- The assignment or sublease would violate any exclusive use provisions with other tenants
- The proposed assignee/subtenant's business would negatively impact the property's reputation

14.4 Landlord's Recapture Right: If Tenant requests consent to assign the Lease or sublet more than 50% of the Premises, Landlord may elect to:

- Consent to the assignment or sublease, or
- Terminate this Lease as to the portion proposed to be assigned/sublet, effective 60 days from Tenant's request

14.5 Excess Rent: If Landlord consents to an assignment or sublease and the rent or other consideration exceeds the rent payable under this Lease, Tenant shall pay Landlord 50% of such excess after deducting reasonable costs (brokerage fees, tenant improvements, legal fees, free rent periods).

14.6 No Release: No assignment or sublease shall release Tenant from any obligation under this Lease. Tenant shall remain primarily liable for all obligations, and any assignee or subtenant shall be jointly and severally liable with Tenant.

14.7 Permitted Transfers: Landlord's consent shall not be required for an assignment or sublease to:

- An entity that controls, is controlled by, or is under common control with Tenant
- An entity resulting from a merger or consolidation with Tenant
- An entity acquiring substantially all of Tenant's assets or stock

Provided that: (i) Tenant provides Landlord with 30 days' prior written notice, (ii) the successor entity has a net worth at least equal to Tenant's net worth at the time of this Lease, and (iii) the use of the Premises remains unchanged.

14.8 Sublease Terms: Any sublease shall:

- Be subordinate to this Lease
- Not extend beyond the term of this Lease
- Require the subtenant to comply with all terms of this Lease
- Prohibit further subletting or assignment without Landlord's consent
- Provide that in the event of termination of this Lease, Landlord may elect to succeed to the sublease

15. SUBORDINATION, ATTORNMENT, AND NON-DISTURBANCE

15.1 Subordination: This Lease shall be subordinate to any ground lease, mortgage, deed of trust, or other security instrument now or hereafter placed upon the Premises or the property of which the Premises are a part (each, a "Superior Instrument"), and to all renewals, modifications, consolidations, and extensions thereof.

15.2 Attornment: If any Superior Instrument is foreclosed or a ground lease is terminated:

- Tenant shall attorn to the purchaser at foreclosure, ground lessor, or other successor in interest
- Tenant shall recognize such party as Landlord under this Lease
- This Lease shall continue in full force and effect as a direct lease between Tenant and such successor

15.3 Non-Disturbance Agreement: Landlord shall use commercially reasonable efforts to obtain from any current or future holder of a Superior Instrument a non-disturbance agreement providing that so long as Tenant is not in default, Tenant's possession and rights under this Lease shall not be disturbed by any foreclosure or other exercise of remedies under the Superior Instrument.

15.4 Estoppel Certificates: Within fifteen (15) business days of request by Landlord, Tenant shall execute and deliver an estoppel certificate certifying:

- That this Lease is in full force and effect and unmodified (or describing modifications)
- The Commencement Date and expiration date
- The amount of Base Rent and date through which rent is paid
- That Tenant has no defenses, offsets, or claims against Landlord (or describing any defenses, offsets, or claims)
- That Tenant is not in default (or describing defaults)
- Such other matters as Landlord or its lender may reasonably request

15.5 Tenant's Failure to Deliver: If Tenant fails to deliver an estoppel certificate within the required time, Landlord may execute the estoppel certificate on Tenant's behalf, and the statements therein shall be binding on Tenant.

16. INDEMNIFICATION AND LIMITATION OF LIABILITY

16.1 Tenant's Indemnity: Tenant shall indemnify, defend (with counsel reasonably acceptable to Landlord), and hold harmless Landlord, its partners, members, officers, agents, employees, and lenders from and against any and all claims, liabilities, damages, costs, and expenses (including reasonable attorneys' fees) arising from or related to:

- Tenant's use or occupancy of the Premises
- Any activity, work, or thing done, permitted, or suffered by Tenant in or about the Premises
- Any breach of Tenant's obligations under this Lease
- Any negligence or willful misconduct of Tenant or its agents, employees, contractors, or invitees
- Any injury to persons or damage to property occurring in, on, or about the Premises (except to the extent caused by Landlord's negligence or willful misconduct)

This indemnity shall survive expiration or termination of this Lease.

16.2 Landlord's Indemnity: Landlord shall indemnify, defend, and hold harmless Tenant from and against any claims arising from:

- Landlord's gross negligence or willful misconduct
- Landlord's breach of its obligations under this Lease
- The condition of common areas or building systems under Landlord's control (except to the extent caused by Tenant)

16.3 Limitation of Landlord's Liability:

- Tenant's sole and exclusive remedy for any default by Landlord shall be against Landlord's interest in the property and rents

- No partner, member, officer, director, employee, or agent of Landlord shall have any personal liability
- Landlord's liability shall not exceed Landlord's equity interest in the property
- In no event shall Landlord be liable for consequential, indirect, or punitive damages

16.4 Exemption of Landlord from Liability: Landlord shall not be liable for:

- Any damage to Tenant's property caused by water, snow, ice, or weather conditions
- Damage caused by other tenants or third parties
- Loss or theft of Tenant's property
- Interruption of utilities or services not caused by Landlord's negligence
- Any latent defect in the Premises

17. END OF TERM

17.1 Surrender of Premises: Upon expiration or earlier termination of this Lease, Tenant shall:

- Surrender the Premises in broom-clean condition
- Repair all damage caused by Tenant or removal of Tenant's property
- Remove all of Tenant's personal property and trade fixtures
- Remove any alterations or improvements Landlord has designated for removal
- Restore the Premises to their original condition, reasonable wear and tear excepted
- Return all keys, access cards, and security codes

17.2 Removal of Property: Tenant shall remove:

- All furniture, equipment, and personal property
- All trade fixtures and specialized data center equipment unless Landlord requests they remain
- Any alterations designated by Landlord for removal

Removal shall be completed by the expiration date. Property not removed may be deemed abandoned, and Landlord may dispose of it at Tenant's expense.

17.3 Repair of Damage: Tenant shall repair all damage caused by removal of property, including:

- Patching and painting walls
- Repairing floors
- Replacing ceiling tiles
- Restoring utility connections
- Capping or removing specialized electrical or HVAC systems

17.4 Holding Over: If Tenant remains in possession after expiration without Landlord's written consent:

- Tenant shall be a month-to-month tenant at 150% of the Base Rent in effect immediately prior to expiration, plus all Additional Rent
- Either party may terminate the month-to-month tenancy upon 30 days' written notice
- All other terms of this Lease shall remain in effect
- Tenant shall indemnify Landlord for all damages resulting from Tenant's failure to surrender, including claims by successor tenants

17.5 Final Inspection: Prior to the expiration date, Landlord and Tenant shall conduct a joint walk-through inspection to identify any deficiencies in Tenant's surrender obligations. Tenant shall have 15 days to cure any deficiencies.

17.6 Survival: The following provisions shall survive expiration or termination:

- Indemnification obligations
- Payment obligations for rent or other charges accrued prior to termination
- Tenant's repair and restoration obligations
- Environmental indemnification
- Confidentiality obligations (if any)

18. GENERAL PROVISIONS

18.1 Governing Law: This Lease shall be governed by and construed in accordance with the laws of the State of Colorado.

18.2 Venue and Jurisdiction: Any litigation arising out of this Lease shall be brought exclusively in the state or federal courts located in Denver County, Colorado. Each party consents to personal jurisdiction in such courts and waives any objection based on venue or forum non conveniens.

18.3 Attorneys' Fees: In any action or proceeding arising out of this Lease, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs.

18.4 Severability: If any provision of this Lease is held invalid or unenforceable, the remainder shall continue in full force, and the invalid provision shall be modified to the minimum extent necessary to make it enforceable while preserving the parties' original intent.

18.5 Notices: All notices shall be in writing and delivered by:

- Personal delivery (effective upon delivery)
- Nationally recognized overnight courier (effective one business day after deposit)
- Certified or registered mail, return receipt requested (effective three business days after deposit)
- Email with confirmation of receipt (effective upon confirmation)

Notices shall be sent to the addresses specified above or such other address as either party may designate by notice.

18.6 Time of Essence: Time is of the essence with respect to all obligations under this Lease.

18.7 Entire Agreement: This Lease, including all exhibits and addenda, constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, and agreements. This Lease may be amended only by a written instrument signed by both parties.

18.8 Interpretation: The headings in this Lease are for convenience only and do not limit or interpret the provisions. As used in this Lease, "including" means "including without limitation."

18.9 No Partnership: Nothing in this Lease creates a partnership, joint venture, or agency relationship between the parties.

18.10 Authority: Each party represents that it has full authority to enter into this Lease and that the person signing on its behalf is duly authorized.

18.11 Quiet Enjoyment: So long as Tenant is not in default, Tenant shall peaceably and quietly hold and enjoy the Premises without interference from Landlord or anyone claiming through Landlord, subject to the terms of this Lease and Superior Instruments.

18.12 Recording: Tenant shall not record this Lease without Landlord's prior written consent. Upon request, the parties shall execute a memorandum of lease in recordable form.

18.13 Financial Statements: Tenant shall provide Landlord with current financial statements (balance sheet, income statement, cash flow statement) within fifteen (15) days of request, but no more than once per year unless Tenant is in default.

18.14 Rules and Regulations: Tenant shall comply with reasonable rules and regulations promulgated by Landlord from time to time for the operation and management of the property, provided such rules do not materially interfere with Tenant's use of the Premises or contradict this Lease.

18.15 Force Majeure: Neither party shall be liable for delays in performance due to events beyond its reasonable control (excluding payment obligations), including acts of God, war,

terrorism, epidemics, government restrictions, strikes, or utility failures. The affected party shall provide prompt notice and use reasonable efforts to mitigate the delay.

18.16 Execution: This Lease may be executed in counterparts, each of which shall be deemed an original. Electronic signatures and PDF signatures shall be valid and binding.

IN WITNESS WHEREOF, the parties have executed this Lease as of the Commencement Date.

LANDLORD:

METROPOLITAN PROPERTIES GROUP LLC

By: _____

Name: Jennifer Thompson

Title: Senior Asset Manager

Date: March 1, 2026

TENANT:

QUANTUMTECH DATA CENTERS INC.

By: _____

Name: Robert Kim

Title: Director of Real Estate

Date: March 1, 2026

EXHIBITS:

EXHIBIT A - PROPERTY LEGAL DESCRIPTION AND SITE PLAN

[Legal description and site plan would be attached]

EXHIBIT B - PERMITTED USE AND INITIAL IMPROVEMENTS

[Detailed specifications would be listed]

EXHIBIT C - RULES AND REGULATIONS

[Property rules would be detailed here]